

Section L - Instructions, Conditions, and Notices to Offerors

1.0 General Instructions

- a. This acquisition is limited to qualified sources: a qualification package is required for new sources. See FAR Clause 52.209-1 for qualification requirements. PROPOSALS FROM NON-QUALIFIED SOURCES WILL NOT BE CONSIDERED IF A QUALIFICATION PACKAGE IS NOT SUBMITTED AND ACCEPTED BY THE AIR FORCE ENGINEER PRIOR TO AWARD, CONTRACT AWARD WILL NOT BE DELAYED FOR QUALIFICATION.
- b. The Government intends to award Basic IDIQ contract(s) to “all qualified” offerors for the MJU-76/B requirement. The unpriced Base IDIQ will be awarded concurrent with a Firm Fixed Price Delivery Order (DO). The Contracting Officer (“CO”) has determined there is high probability of adequate price competition for DOs. Upon examination of the initial offers, the CO will review this determination, and if in the CO’s opinion, adequate price competition exists, no additional cost and pricing data will be requested, and certification under FAR 15.406-2 will not be required. However, if at any time during this competition, the CO determines that adequate price competition no longer exists; offerors may be required to submit information to the extent necessary for the CO to determine the price fair and reasonable IAW DFARS 252.215-7008. The government intends to award a delivery order to each successful offeror through a split-award of available funds; however, the government reserves the right to award no contract at all or winner-take-all; depending on the number of adequate proposals and reasonableness of prices submitted.
- c. The offeror’s proposal must include all data and information requested by this Instructions to Offeror (ITO) and must be submitted in accordance with these instructions. The offer shall be compliant with the requirements as stated in the Technical Data Package (TDP), Contract Data Requirements List (CDRL), and Model Contract/Solicitation, etc.
- d. The proposal shall be clear, concise, and include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The proposal should not simply rephrase or restate the government’s requirement but, rather, shall provide convincing rationale to address how the offeror intends to meet these requirements. Offerors shall assume that the government has no prior knowledge of their facilities or experience and will base its evaluation on the information presented in the offeror’s proposal.
- e. Elaborate brochures or documentation, binding, detailed art work, or other embellishments are unnecessary and are not desired.
- f. The proposal acceptance period is specified in Section A of the model contract/solicitation/request for proposal (RFP). The offeror shall make a clear statement in Section A of the proposal documentation volume that the proposal is valid through this date.

- g. In accordance with FAR Subpart 4.8, the government will retain one copy of all unsuccessful proposals. Unless the offeror requests otherwise, the government will destroy extra copies of such unsuccessful proposals.

1.1 General Information

1.1.1 Point of Contact

The contracting officer (CO) and contract specialists (buyer) are the **sole points of contact** for this acquisition. Address any questions or concerns you may have to the CO and buyer. Written requests for clarification may be sent to the Points of Contact listed in the solicitation on sam.gov.

1.1.2 Debriefings

The CO will promptly notify offerors of any decision to exclude them from the competition IAW FAR 15.503, whereupon they may request and receive a debriefing. Offerors desiring debriefing must make their request IAW the requirements of FAR 15.505 or 15.506, as applicable.

1.1.3 Discrepancies

If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the CO in writing with supporting rationale as well as the remedies the offeror is asking the CO to consider as related to the omission or error. The offeror is reminded that the government reserves the right to award this effort based on the initial proposal, as received, without discussion. This reservation includes matters of additional or substitute pages of the initial proposal.

1.1.4 Electronic Reference Documents

All referenced documents for this solicitation are available on the Contract Opportunities website <https://sam.gov>. Potential offerors are encouraged to subscribe for real - time email notifications when information has been posted to the website for this solicitation.

1.1.5 Communications

Exchanges of source selection information between the government and offerors will be controlled by the CO. Email may be used to transmit such information to and from offerors only if the email can be sent and received encrypted and includes “Source Selection Information – See FAR 2.101 & 3.104” in the subject line. Otherwise, source selection information may be transmitted via DoD Safe at <https://safe.apps.mil/>.

In order to facilitate the sending and receiving of encrypted emails, offerors must use MS Outlook email configured to support encryption or a different email product that is S/MIME compatible and configured to support encryption. If you intend to submit your source selection information via encrypted email, you will need to contact the PCO prior to the first submittal in order to exchange certificates used for

encryption. To ensure the process is working correctly, send a test encrypted message first (without any source selection information). The PCO may determine to conduct telephone exchanges when deemed appropriate by the Government.

1.1.6 Amendments to the Solicitation

If the RFP is amended, all terms and conditions that are not amended remain unchanged and in full force and effect. Offerors shall acknowledge receipt of any amendment to this request by the date and time specified in the amendment(s) by signing and returning the front page of each amendment with its proposal.

1.1.7 Page Limitations

Page limitations shall be treated as maximums. If exceeded, the excess pages may not be read or considered in the evaluation of the proposal. Page limitations may be placed on responses to Evaluation Notices (ENs). The specified page limits for EN responses will be identified in the letters forwarding the ENs to the offerors.

1.1.7.1 Page Size and Format

- a. A page is defined as each face of a sheet of paper containing information. When both sides of a sheet display printed material, it shall be counted as two pages. Page size shall be 8.5 x 11 inches, not including foldouts. Pages shall be single spaced. Except for the reproduced sections of the solicitation documentation, the text size shall be no less than 12 point Times New Roman font. Tracking, kerning, and leading values shall not be changed from the default values of the word processing or page layout software. Use at least 1 inch margins on the top and bottom and ¾ inch side margins. Pages shall be numbered sequentially by volume. These page sizes and formation restrictions shall apply to responses to Evaluation Notices.
- b. Tables, charts, graphs, and figures shall be used wherever practical and depict organizations, systems, and layout, implementation schedules, plans, etc. These displays shall be clear and legible.

1.1.8 Pricing Related Data

Price/cost for the first delivery order must be submitted to determine each offeror/s split award percentage. The split award percentage will be used to meet the minimum award guarantee. Offerors must submit pricing on the RFOP Worksheet Attachment, fillable worksheet in Section J.

1.1.9 Classified Information

Classified information shall NOT be submitted with the offer.

1.1.10 Cross-Referencing

To the greatest extent possible, each volume shall be written on a stand-alone basis so that its contents

may be evaluated with a minimum of cross-referencing to other volumes of the proposal. Information required for proposal evaluation which is not found in its designated volume will be assumed to have been omitted from the proposal.

Cross-referencing within a proposal volume is permitted where its use would conserve space without impairing clarity.

2.0 Evaluation Criteria

2.1 Factor 1| Qualified Source Proposal

The contractor must be a qualified source prior to contract award. See paragraph 1.1 above and the source qualification requirements referenced in Section J of the solicitation.

2.2 Factor 2| Plan and Technical Approach to Manufacture MJU-76

Provide a plan which details the proposed processes, equipment, and facilities that will be used to manufacture the item at the required production rates. The plan shall be submitted as a pdf and limited to no more than 25 pages. The plan shall include:

2.2.1 Information on whether the process/part is manufactured in house or procured from a subcontractor/vendor.

2.2.2 Description of any automated equipment and its benefit in maintaining a high production rate.

2.2.3 Descriptions of types and quantities of machines to be used.

2.2.4 Description of how the proposed processes will prevent the formation of defects.

2.2.5 Description of inventory management control of critical components to assure meeting the production rate.

2.2.6 A flow diagram of the proposed assembly line or lines.

2.3 Factor 3| Price Proposal

Completion of the RFOP Worksheet, attached in Section J, will represent the price proposal. All offerors must complete Unit Price information for highlighted spreadsheet cells. Offerors must express unit pricing in \$x.xx format (\$ will represent US Dollars).

3.0 Contract Documentation | Solicitation/Representation and Certifications

The purpose of this volume is to provide information to the offeror for preparing the contract document and supporting file. The offeror's proposal shall include a signed copy of the model contract, and Sections A through K & I. This includes:

3.0.1 Section A – Solicitation/Contract Form

Completion of this section and signature by an authorized representative of the offeror constitutes an offer, which the government may accept.

3.0.2 Section B – Supplies or Services and Costs/Prices

Pricing information of Section B- The schedule of the RFP, shall be submitted on the RFOP Worksheet in lieu of Section B

3.0.3 Section F – Deliveries or Performance

Completion of Section B delivery requirements by providing an accurate, realistic delivery date for each CLIN/Sub-CLIN as required by Clause 52.211-8.

3.0.4 Section K – Complete Representations and Certifications

3.0.5 Section I – Contract Clauses

Complete Clause, all clauses requiring contractor fill-in

3.0.6 Solicitation Exceptions

Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors. Failure to meet a requirement MAY result in an offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale. Each exception shall be specifically related to each paragraph and/or specific part of the solicitation to which the exception is taken. Provide rationale in support of the exception and fully explain its impact, if any, on performance, schedule, price, and specific requirements of the solicitation. This information shall be provided in the format and content of table 3.1.4 below.

Table 3.1.4 - Solicitation Exceptions			
Solicitation Document	Page/Paragraph	Requirement/Portion	Rationale
<i>Air SPEC, Model Contract, ITO, etc.</i>	<i>Applicable Page and Paragraph Number</i>	<i>Identify the requirement or portion to which exception is taken</i>	<i>Describe why the requirement can/will not be met</i>

3.0.7 Attachments to the Model Contract

If the offeror is other than a small business, the Offeror shall submit a Small Business Subcontracting Plan in accordance with FAR 52.219-9. The Subcontracting Plan and its goals become a term and attachment to a successful offeror's Base IDIQ award.